BRAND PARTNERSHIP AND ENDORSEMENT AGREEMENT

THIS BRAND PARTNERSHIP AND ENDORSEMENT AGREEMENT (the "Agreement") is made and entered into as of the 10th day of November, 2026 (the "Effective Date"),

BY AND BETWEEN:

1. SAVANNAH MOBILE LIMITED, a limited liability company incorporated in the Republic of Kenya under the Companies Act, 2015, having its registered office at Savannah Towers, 4th Floor, Waiyaki Way, Westlands, P.O. Box 14820-00800, Nairobi, Kenya (hereinafter referred to as the "Brand", which expression shall where the context so admits include its successors in title and permitted assigns);

AND

2. JOHN DOE, an adult Kenyan citizen and professional recording and performing musical artist trading under the professional alias "John Doe" of P.O. Box 45102-00100, Nairobi, Kenya (hereinafter referred to as the "Artist", which expression shall where the context so admits include his personal representatives, heirs, and permitted assigns).

The Brand and the Artist are hereinafter individually referred to as a "Party" and collectively as the "Parties".

RECITALS

A. WHEREAS, the Brand is engaged in the manufacture, distribution, and marketing of mobile smartphone handsets in the Republic of Kenya and is launching a seasonal youth marketing campaign titled "The Sound of Nairobi" (the "Campaign").

B. WHEREAS, the Artist is an independent musical recording artist, songwriter, and performer of established reputation and goodwill in the Kenyan music industry.

C. WHEREAS, the Brand desires to engage the Artist to provide certain endorsement appearances, social media deliverables, and a short-form promotional musical jingle for the Campaign, and the Artist agrees to provide such services and grant a limited license to the Brand on the fair and transparent terms and conditions set forth in this Agreement.

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, the Parties agree as follows:

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1. DEFINITIONS AND INTERPRETATION

1.1 "Artist Identification" means the Artist's legal name ("John Doe"), professional stage name, approved photographic portraits, likeness, biographical summary, and vocal performance specifically recorded or approved by the Artist for the Campaign.

1.2 "Campaign Jingle" means the original thirty-second (30-second) acoustic and vocal musical recording created and performed by the Artist specifically for the Campaign as described in Schedule 1.

1.3 "Deliverables" means the specific appearances, social media posts, and the Campaign Jingle set out in Schedule 1 attached hereto.

1.4 "Gross Fee" means the total compensation payable by the Brand to the Artist prior to any statutory tax deduction required under the laws of Kenya, without any deduction for agency commissions, production expenses, or marketing costs.

1.5 "Product Category" means strictly mobile cellular telephone handsets and smartphones, and expressly excludes telecommunications network services, mobile money platforms, headphones, laptops, and consumer audio accessories.

1.6 "Term" means the fixed three (3) month period commencing on the Effective Date and expiring automatically on 9th February, 2027, unless terminated earlier in accordance with Clause 10.

1.7 "Territory" means strictly the Republic of Kenya.

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2. APPOINTMENT AND SCOPE OF SERVICES

2.1 Engagement. The Brand hereby engages the Artist as a featured campaign partner for the Campaign within the Territory during the Term, and the Artist accepts such engagement subject to the terms of this Agreement.

2.2 Deliverables and Scheduling. The Artist shall perform and deliver the Deliverables set out in Schedule 1. All physical appearances, studio sessions, and filming dates shall be scheduled by mutual written agreement at least fourteen (14) days in advance and shall reasonably accommodate the Artist's pre-existing live performance, touring, and recording commitments.

2.3 Creative Approval. The Brand shall submit all proposed promotional materials incorporating the Artist Identification or the Campaign Jingle to the Artist for review prior to public release. No such material shall be published without the Artist's prior written consent, which shall not be unreasonably withheld or delayed beyond five (5) business days.

2.4 Production Costs. The Brand shall bear one hundred percent (100%) of all studio booking, audio engineering, filming, wardrobe, styling, hair, makeup, security, transport, and accommodation costs incurred in connection with the production of the Deliverables. No production or marketing costs shall be recoupable from or deducted against the Gross Fee.

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3. TERM AND TERRITORY

3.1 Fixed Duration. This Agreement shall remain in force strictly for the Term of three (3) months from the Effective Date and shall expire automatically at the end of the Term without any unilateral option for renewal. Any extension of the Term shall require a separate written agreement signed by both Parties for additional negotiated compensation.

3.2 Post-Term Wind-Down. Upon expiration or earlier termination of the Term, the Brand shall cease all active paid promotion, boosting, broadcast, and billboard display of materials containing the Artist Identification or the Campaign Jingle within fourteen (14) days. Historical, unboosted organic social media posts published on the Brand's official pages during the Term may remain in the Brand's chronological social media feed unless the Artist requests removal following a material breach by the Brand.

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4. COMPENSATION AND PAYMENT TERMS

4.1 Gross Fee. In full consideration for the Deliverables and the limited license granted herein, the Brand shall pay the Artist a guaranteed, non-recoupable Gross Fee of Kenya Shillings Six Hundred Thousand (KES 600,000), payable on a gross receipts basis without any packaging, agency, or production deductions.

4.2 Payment Schedule. The Brand shall pay the Gross Fee to the Artist's designated Kenyan bank account or M-Pesa business till in two (2) installments as follows:

(a) Fifty percent (50%), being KES 300,000, within seven (7) days of the execution of this Agreement and prior to the commencement of any filming or recording; and

(b) Fifty percent (50%), being KES 300,000, within fourteen (14) days following the Artist's delivery of the Deliverables listed in Schedule 1.

4.3 Late Payment Interest. Any sum not paid by the Brand on its due date shall accrue simple interest at the rate of two percent (2%) per month above the Central Bank of Kenya base lending rate until paid in full, without prejudice to the Artist's right to suspend services or terminate this Agreement under Clause 10.

4.4 Taxes. All payments are subject to statutory Withholding Tax at the prevailing resident rate (currently five percent (5%) for resident professional and contractual fees under the Income Tax Act, Cap. 470, Laws of Kenya), for which the Brand shall issue an official KRA iTax Withholding Tax Certificate to the Artist within fourteen (14) days of deduction.

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5. INTELLECTUAL PROPERTY AND OWNERSHIP OF RIGHTS

5.1 Retention of Copyright by Artist. Pursuant to the Copyright Act (Cap. 130, Laws of Kenya), the Artist shall retain one hundred percent (100%) ownership of all right, title, and interest, including all economic copyrights and neighbouring rights, in and to the underlying musical composition (melody and lyrics) and the Master Sound Recording of the Campaign Jingle, as well as all Artist Identification. Nothing in this Agreement shall be construed as a deed of assignment or a "work made for hire" transferring copyright ownership to the Brand.

5.2 Limited Term License. Subject to the timely payment of the Gross Fee in full, the Artist hereby grants to the Brand a limited, non-transferable, non-sublicensable license during the Term and within the Territory only, to synchronize and publicly communicate the Campaign Jingle and use the Artist Identification solely in digital, radio, and outdoor advertising for the Campaign.

5.3 Exclusion of Pre-Existing Catalogue and CMOs. This Agreement does not grant the Brand any rights whatsoever in the Artist's pre-existing or future commercial music catalogue. The Artist retains the unrestricted right to register the underlying musical work with the Kenya Copyright Board (KECOBO) and to collect all public performance, broadcast, and mechanical royalties through the Music Copyright Society of Kenya (MCSK), the Performers Rights Society of Kenya (PRISK), or any other licensed Collective Management Organization (CMO).

5.4 Preservation of Moral Rights. In accordance with Section 32 of the Copyright Act (Cap. 130, Laws of Kenya), the Artist's moral rights of paternity and integrity are expressly preserved. The Brand shall credit the Artist as "Music by John Doe" in all video descriptions and broadcast credits where reasonably practicable, and shall not alter, remix, use for artificial intelligence (AI) voice training, or distort the Campaign Jingle or the Artist's voice without the Artist's prior written approval.

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6. NARROW CATEGORY EXCLUSIVITY

6.1 Scope of Exclusivity. During the three (3) month Term only, the Artist agrees that he shall not render promotional or endorsement services for any direct competitor brand within the Product Category (strictly mobile cellular telephone handsets and smartphones) within the Territory.

6.2 Permitted Activities. For the avoidance of doubt, the Artist shall remain completely free at all times during the Term to:

(a) enter into brand partnerships with businesses outside the Product Category, including telecommunications network operators, mobile money services, banks, beverage companies, apparel brands, and audio equipment manufacturers;

(b) perform live concerts at any venue or festival regardless of who sponsors the venue or festival, provided the Artist does not personally endorse a competing smartphone handset; and

(c) release, distribute, and promote his independent musical recordings without restriction.

6.3 No Post-Term Restriction. All exclusivity obligations under this Clause 6 shall cease immediately upon the expiration or termination of the Term.

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7. ACCOUNTING, TRANSPARENCY AND AUDIT RIGHTS

7.1 Payment Statements. Each payment made by the Brand under Clause 4 shall be accompanied by a clear written remittance statement showing the Gross Fee installment, the exact statutory Withholding Tax deducted, and the net amount remitted.

7.2 Right of Inspection. If any bonus or usage extension fee is agreed between the Parties, the Artist (or a Certified Public Accountant of Kenya appointed by the Artist) shall have the right, upon fourteen (14) days' prior written notice and up to once per calendar year, to inspect the Brand's books and campaign media logs relating to this Agreement during normal business hours. If any inspection reveals an underpayment of five percent (5%) or more, the Brand shall immediately pay the shortfall together with the reasonable cost of the audit.

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8. WARRANTIES AND MUTUAL INDEMNITY

8.1 Artist Warranties. The Artist warrants that: (a) he has the legal capacity to enter into this Agreement; and (b) the Campaign Jingle is an original work of the Artist and does not infringe the copyright of any third party.

8.2 Brand Warranties. The Brand warrants that: (a) it is duly incorporated and authorized to enter into this Agreement; (b) all advertising claims made by the Brand regarding its products shall comply with the Consumer Protection Act, 2012 and the Kenya Information and Communications Act; and (c) the Brand shall not use any third-party materials alongside the Artist Identification without securing all required clearances.

8.3 Mutual Indemnification. Each Party (the "Indemnifying Party") shall indemnify and hold harmless the other Party from and against any direct third-party claims, damages, and reasonable legal costs arising out of a proven material breach of the Indemnifying Party's warranties under this Clause 8, provided that the Artist's maximum aggregate financial liability under this Agreement shall in no event exceed the net cash amount actually received by the Artist under Clause 4.

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9. CANCELLATION AND FORCE MAJEURE

9.1 Brand Cancellation. If the Brand cancels or postpones the Campaign for reasons other than the Artist's uncured material breach, the Artist shall retain all sums already paid, and if the Artist has already recorded the Campaign Jingle or completed at least fifty percent (50%) of the Deliverables, the remaining balance of the Gross Fee shall become payable within fourteen (14) days of cancellation.

9.2 Illness or Force Majeure. Neither Party shall be in breach of this Agreement if prevented from performing due to an event of Force Majeure (including documented medical incapacity of the Artist, natural disaster, or government restriction). In such event, the Parties shall in good faith reschedule the affected appearance to a mutually convenient date within thirty (30) days.

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10. TERMINATION

10.1 Termination for Material Breach. Either Party may terminate this Agreement by written notice if the other Party commits a material breach of this Agreement (including non-payment of any installment of the Gross Fee by the Brand) and fails to cure such breach within fourteen (14) days after receiving written notice specifying the breach.

10.2 Mutual Reputation Protection. Either Party may terminate this Agreement upon fourteen (14) days' written notice if the other Party is convicted of a felony offence under the laws of Kenya or engages in verified conduct that brings the terminating Party into objective, severe public disrepute. In the event of termination by the Artist due to the Brand's breach or disrepute, all unpaid installments of the Gross Fee shall become immediately due and payable, and all licenses granted to the Brand herein shall terminate immediately.

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11. GOVERNING LAW AND DISPUTE RESOLUTION

11.1 Governing Law. This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the Republic of Kenya.

11.2 Amicable Settlement and Mediation. In the event of any dispute arising out of this Agreement, the Parties shall first attempt to resolve the matter amicably through good-faith negotiation within fourteen (14) days. If the dispute is not resolved, the Parties shall refer the dispute to mediation in Nairobi administered by the Nairobi Centre for International Arbitration (NCIA) Mediation Rules before commencing litigation in the courts of Kenya at Nairobi.

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12. GENERAL PROVISIONS

12.1 Independent Contractor. The Artist is an independent contractor and not an employee, partner, or agent of the Brand.

12.2 Notices. All formal notices under this Agreement shall be in writing and delivered by hand or electronic mail to the addresses specified by the Parties.

12.3 Entire Agreement and Amendments. This Agreement (including Schedule 1) constitutes the entire agreement between the Parties relating to the Campaign and may only be amended by a written instrument signed by both the Brand and the Artist.

SCHEDULE 1: CAMPAIGN DELIVERABLES AND TIMELINE

1. Campaign Jingle: One (1) original thirty-second (30-second) musical audio jingle recorded at a professional Nairobi studio booked and paid for by the Brand (maximum one (1) four-hour studio session and one (1) round of minor mix revisions).
2. Launch Appearance: One (1) two-hour personal appearance and acoustic performance of two (2) songs at the Brand's Nairobi product launch event in Westlands on a mutually agreed Friday in November 2026.
3. Social Media Deliverables:
    - Two (2) Instagram Feed/Reel posts on the Artist's official Instagram account (@johndoemusic_ke); and
    - Two (2) TikTok short-form videos featuring the Campaign Jingle.

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Brand Partnership and Endorsement Agreement as of the Effective Date first written above.

SIGNED for and on behalf of SAVANNAH MOBILE LIMITED:

Signature: _____

Name: Grace Wanjiku Mutua

Title: Head of Marketing & Brand Partnerships

Date: 10th November, 2026

SIGNED by the ARTIST:

Signature: _____

Name: JOHN DOE (p/k/a "John Doe")

Date: 10th November, 2026